

Ram Lakhan Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 April 2013 · Writ-C No. 19196 of 2013 · **Petition disposed; deposit ₹30,000 for restoration; representation under Clauses 6.14 and 6.5.**

HEADNOTE

A consumer who accepted electricity charges but whose supply stood disconnected was directed, without a merits adjudication, to deposit ₹30,000 within a month. On deposit the connection is to be restored without delay after formalities, and the pending representation is to be considered expeditiously under Clause 6.14 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ram Lakhan Singh petitioned the Allahabad High Court after disconnection of his electricity supply. Counsel submitted that he had accepted liability for the electricity charges, yet the connection remained cut off. Counsel for the Vidyut Nigam and the Standing Counsel were heard. The Court was not asked to recount the arrears, billing history, or date of disconnection. The petitioner sought restoration and consideration of a representation already moved under the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

restoration on deposit; representation under 6.14 read with 6.5

HOLDING

Without entering into merits, a consumer who had accepted electricity charges but whose connection stood disconnected was directed to deposit ₹30,000 within a month; if deposited, the connection is to be restored without delay after necessary formalities, and the representation is to be considered expeditiously in the light of Clause 6.14 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A consumer who accepted electricity charges but whose supply stood disconnected was directed, without a merits adjudication, to deposit ₹30,000 within a month.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DISCONNECTION AND OF THE ELECTRICITY CHARGES

The Court expressly declined to enter into merits and left the representation to be considered under Clauses 6.14 and 6.5. ¶ 1